

**IN THE PROCUREMENT REVIEW COMMITTEE BALOCHISTAN PUBLIC
PROCUREMENT REGULATORY AUTHORITY**

PRC Appeal No. 47/2025

M/s Daavi Construction Company,
Spinzar Plaza, Angle Road, Quetta.

....Appellant

VERSUS

1. Government of Balochistan,
Through its Chief Secretary,
Office at Civil Secretariat, Zarghoon Road, Quetta.
2. Chief Officer,
Municipal Committee, Gandakha.
3. Chairman,
Municipal Committee, Gandakha.
4. Assistant Engineer,
Municipal Committee, Gandakha.
5. Complaint Redressal Committee,
Through its Chairman,
Balochistan Local Government.
6. M/s Master Niaz Motors,
Office at Bypass Road, Nawa Killi, Quetta.

... Respondents

QUORUM

- | | |
|------------------------------|----------------------|
| 1. Habib Ur Rehman Jamot | Chairman PRC |
| 2. Mubashir Ali Khan (FCIPS) | Member PRC |
| 3. Iftikhar Ahmed Sanjrani | Co-opted Member |
| 4. Iftikhar Ahmed Mir | Technical Member PRC |
| 5. Abdul Wahab Bulledi | Private Member PRC |

**PETITION UNDER RULE 56 (A) OF BALOCHISTAN PUBLIC PROCUREMENT
RULES 2014 AGAINST TSE-252610889501**

For Appellant: Mr. Khizer Davi, Advocate.
For Respondents No.1 to 5: Mr. Irfan Saifal, Mr. Naseer Ahmed & Mr. Ghulam-ud-Din.
For respondent No.6: Mr. Iftikhar Ahmed.

Date of Final Hearing: 04-12-2025

Decided On: 09-12-2025

DECISION

This Committee has taken up the appeal filed by the Appellant against its disqualification in technical evaluation carried out by the official Respondent in Tender Title "Procurement Of Tractor, Water Bowser, Spray Machine , Dewatering Pump and

"Garbage Container" advertised under TSE No.252610889501 dated 7th October 2025 through the Single Stage Two Envelope bidding procedure.

2. The Appellant, in its appeal, asserts its standing as a reputable contractor and general order supplier within Balochistan, highlighting its experience in successfully completing numerous government projects and holding 3S dealerships for various manufacturers.

3. The Appellant contends that his bid was fully compliant. It alleges an error in the evaluation process, whereby the bid, having initially been found eligible, was subsequently and incorrectly declared non-responsive.

4. Aggrieved by this evaluation, the Appellant filed the grievance before the Complaint Redressal Committee (CRC) on 01.11.2025, which was dismissed vide its order dated 24.11.2025, upholding the procuring agency's decision on the grounds that the evaluation was carried out on merit.

5. Being aggrieved by the CRC's decision, the Appellant has now invoked the jurisdiction of this Committee by filing the present appeal under Rule 56-A of the BPP Rules.

6. Notices were issued to the Official Respondent and the Private Respondent namely M/S Master Niaz Motors. The Official Respondent filed their Reply and have contested the Appeal on both factual and legal grounds. The Private Respondent opted to rely upon the submissions made by the Official Respondent.

7. The crux of the Official Respondent is that the Appellant's disqualification was justified due to its failure to meet two mandatory technical specifications:

- a) Water bowser with a tank capacity of 3,000 liters; and
- b) Sprayer displacement of 1200 CC.

The Respondents argued that since the bid was evaluated as a complete package, the Appellant's non-compliance with these mandatory requirements rendered its entire bid non-responsive.

8. We have heard the learned counsel for the Appellant and the authorized representatives of the Respondents and have examined the available record.

9. During the hearing, a fundamental legal flaw in the procurement process was brought to the fore. Rule 13 of the BPP Rules expressly prohibits procuring agencies from

specifying brand names in bidding documents, except where such requirements are qualified with the words "or equivalent".

10. Perusal of the instant bidding document reveals that the Procuring Agency has categorically specified particular brand names, in direct contravention of the aforesaid Rule.

11. Crucially, the record includes a letter Dated 9th October 2025 issued by BPPRA, which had specifically identified this violation and directed the Procuring Agency to rectify the non-compliance. When confronted regarding their failure to comply with this directive, the representatives of the Procuring Agency contended that the said letter could not be received at their far-flung office at Gandakha.'

12. The Committee finds this explanation untenable and dismisses it in entirety. The official letter in question bears multiple endorsements, including that of the administrative Secretary's office and was transmitted through established government channels of the Postal Service. The Procuring Agency's plea of non-receipt does not absolve it of its statutory duty to conduct procurement in conformity with the BPP Rules, nor does it negate the apparent illegality of the bidding documents.

13. To determine whether the Appellant fulfilled the two mandatory technical requirements under BPP Rule 35(1) governing responsiveness, the Appellant's bid was compared with the required specifications in the bidding documents and it transpired that the procuring had required for the tank capacity of 3,000 Liters for water bowser and had given an acceptable range of 1000 – 1243 CC for Sprayers in the bidding document.

14. The Committee notes that while bidding to these requirements, the Appellant, in his bid, agreed to supply a bowser meeting this specification and attached the manufacturer's brochure, which explicitly states that the manufacturer produces water tanks of all specifications and lists its regularly sold tanks with capacities of 1,250, 1,500, and 1,750 Gallons. Similarly, the brochure of Sprayer manufacturer clearly states the engine displacement as 1000 CC which falls within the acceptable range (1000 – 1243 CC) stipulated in the bidding document.

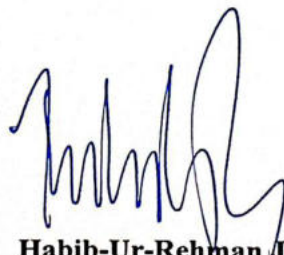
15. When confronted with the Committee's comparative analysis, the Procuring Agency maintained its position. It argued that the Appellant's bid was correctly rejected because (i) the manufacturer's brochure for the water bowser did not explicitly list a 3,000-liter

model, and (ii) the engine capacity of 1200 CC was superior to the 1000 CC offered by the Appellant, implying disqualification of the Appellant.

16. The Committee holds that the Appellant's bid complied with both the mandatory technical specifications in question and that no justifiable grounds exist for the disqualification of the Appellant's bid. The Procuring Agency has failed to establish that its decision was based on a fair, reasonable, or legally correct application of the stated evaluation criteria.

17. Consequently, the instant Appeal is ALLOWED and the matter is REMANDED to the Procuring Agency, with the following directions:

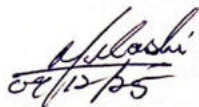
- i. The Appellant's bid was technically responsive on water bowser capacity and engine power factors and is binding for the purpose of re-evaluation.
- ii. The Procuring Agency shall, within 7 days of this order, conclude the remaining evaluation in strict compliance with Rule 35(1) read with 41(3) of the BPP Rules, upload the revised evaluation report on the ePPS and award the contract to the lowest evaluated bidder in accordance with the Law.



Habib-Ur-Rehman Jamot

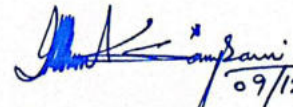
Chairman
Government of Balochistan
Public Procurement Review Committee
(B-PPRA)

9/12/2025



Mubashir Ali Khan

Member
Procurement Review Committee
BPPRA



Iftikhar Ahmed Sanjrani

Member
Procurement Review Committee
BPPRA



Iftikhar Ahmed Mir

Member
Procurement Review Committee
BPPRA



Abdul Wahab Buledi

Member
Procurement Review Committee
BPPRA